IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

STATE OF OREGON,
Plaintiff,

vs.

ASHLE' PENN,
Defendant, Pro Se.

Case No. 24CR49043

DEFENDANT'S EMERGENCY MOTION TO DISMISS INDICTMENT
WITH PREJUDICE

Grounds: State v. Roberts, 374 Or. 821 (2026);
Article I, §§ 9, 10, and 11, Oregon Constitution;
Fourth, Sixth, and Fourteenth Amendments, United States Constitution;
Napue v. Illinois, 360 U.S. 264 (1959);
United States v. Basurto, 497 F.2d 781 (9th Cir. 1974);
Brady v. Maryland, 373 U.S. 83 (1963);
State v. Lively, 321 Or. 1 (1995);
ORS 135.030; Oregon RPC 3.8

ORAL ARGUMENT REQUESTED — ESTIMATED TIME: 90 MINUTES
COURT REPORTER REQUESTED PURSUANT TO UTCR 4.050(1)

DISCLOSURE AND CERTIFICATION
PURSUANT TO UTCR 4.010 AND UTCR 1.090

Defendant Ashle' Penn, appearing pro se, certifies pursuant to UTCR 4.010 and UTCR 1.090 that this memorandum is submitted in good faith; that the legal contentions herein are based on reasonable inquiry into the law and the factual record; that no known factual misrepresentations are presented; and that all legal authorities cited are drawn from published court opinions, constitutional provisions, or statutory texts.

I. INTRODUCTION

This is not a close case. It is not a case in which a defendant asks this Court to exercise discretion in her favor. It is a case in which the Oregon Supreme Court has already decided the outcome — and in which this Court's own conduct, the State's own documents, and the State's own sworn statements have constructed, brick by brick, every ground for the relief requested.

Defendant Ashle' Penn has been without appointed counsel in this felony case for 296 consecutive days following the withdrawal of prior counsel on April 29, 2025. That is 206 days beyond the 90-day constitutional threshold established by the Oregon Supreme Court in State v. Roberts, 374 Or. 821 (2026) (Duncan, J., unanimous). The trial court's legal duty to dismiss this case attached on Day 91 — July 28, 2025. The Oregon Supreme Court stated that duty without qualification: "the trial court had a legal duty to grant relator's motion to dismiss." State v. Roberts, 374 Or. 821.

But this Court must understand what it is being asked to dismiss. It is not being asked to dismiss a legitimate prosecution that encountered a procedural complication. It is being asked to dismiss a case that began with a racial misidentification acknowledged in writing by the arresting deputy; that was sustained through evidence manufactured after that written acknowledgment of innocence; that was presented to a grand jury through testimony the prosecutor knew was directly contradicted by the arresting officer's own sworn affidavit — and which the prosecutor did not correct; that was maintained through a warrantless entry into Defendant's home by deputies who lacked any judicial warrant; that was used to revoke Defendant's bail on the basis of a condition that had never been reimposed; and that has now been prosecuted for 296 days without counsel while this Court entered adverse rulings, held hearings, and issued a warrant — all after expressly promising Defendant on the record that no proceedings would go forward without counsel.

The State has had every opportunity to do the right thing at every stage of this prosecution. At every stage, it has chosen to do the opposite. The remedy for that choice is dismissal with prejudice.

II. FACTUAL BACKGROUND

The complete chronological record is set forth in Exhibit A, incorporated herein by reference. The following facts are drawn entirely from documents produced by the State, sworn statements made by State witnesses, and this Court's own record.

A. The Arrest: A Racial Substitution Without Individualized Investigation

On September 17, 2024, a different woman — shorter, younger, with short processed hair and no locs — committed an alleged theft at Target, 12675 NW Cornell Road, Portland, Oregon.

Surveillance footage of the actual perpetrator was recorded on a thumb drive. Deputy Rambin personally collected that thumb drive from Target at approximately 6:00 PM on September 18 — three hours before Defendant entered the store — and did not review its contents before making an arrest. See Beck v. Ohio, 379 U.S. 89, 91 (1964) (probable cause requires individualized suspicion based on facts actually known to the officer at the time of arrest).

Defendant entered Target on the evening of September 18, 2024, carrying a Target bag and purchase receipts to make a return. Target LP Agent Sarah Fillis's own minute-by-minute activity report — covering 9:03 PM through 9:39 PM — records no security-tag removal, no concealment, and no act consistent with theft. That document is Brady material that was withheld from the grand jury. See Brady v. Maryland, 373 U.S. 83 (1963).

Deputy Rambin arrived at Target and, before reviewing real-time surveillance, before observing any criminal conduct by Defendant, and before comparing Defendant's appearance to the prior-day footage already in his possession, communicated probable cause to arrest. His sole basis: a verbal report that Defendant was the woman from the prior day's theft. She was not. His first words to Defendant upon arrest: "You were here yesterday." She had not been. She was correct.

Defendant was arrested outside the store with her receipts still in her hand. Officers assured her that her receipts and cash would be collected. Neither was preserved or produced in discovery. On body-worn camera footage, Officer Orozco took Defendant's shopping bag inside; LP Agent Fillis scanned items and returned numerous to the bag, stating they are "not Target's property." Defendant's booking photograph was taken at the jail. That photograph — the sole product of this unlawful arrest — became the instrument of every subsequent identification in this case.

B. The Written Acknowledgment of Innocence and the Evidence Manufacturing That Followed

On December 27, 2024, Deputy Rambin filed a supplemental report containing the following written admission: "After reviewing surveillance footage, I arrested the wrong person."

A constitutionally faithful officer, upon making that admission, seeks dismissal. Deputy Rambin did not. Instead, he returned to Target and directed LP personnel to compile "any and all information" about Defendant from prior store visits, stating he would "document [Defendant's] actual case separately." This is not investigation. This is fabrication — the deliberate construction of a case against a person the investigating officer has already acknowledged, in writing, is innocent. See Spencer v. Peters, 857 F.3d 789, 793 (9th Cir. 2017) (continuing an investigation after a written acknowledgment of the target's innocence constitutes deliberate fabrication of evidence under the Fourteenth Amendment); Devereaux v. Abbey, 263 F.3d 1070, 1076 (9th Cir. 2001) (en banc) (the written admission independently satisfies the "knew or should have known of innocence" prong).

Every identification of Defendant made after September 18, 2024, was made using her booking photograph from the unlawful arrest. Travis Gower — identified by Deputy Rambin as an "intelligence analyst" for the Washington County Sheriff's Office — compared that booking

photograph to surveillance footage from other incidents. At the time he performed this work, Gower held no valid DPSST law enforcement certification; his certification had expired in 2020 and had not been renewed. See ORS 181A.355 et seq. Every identification Gower made is tainted on two independent grounds: the unlawfulness of the source photograph, and the unlawfulness of the investigative act itself. See Wong Sun v. United States, 371 U.S. 471, 484–85 (1963); State v. Hall, 339 Or. 7, 24–26 (2005).

C. The Grand Jury: Perjury, Prosecutorial Knowledge, and the Circumvention of a Demanded Preliminary Hearing

Defendant demanded a preliminary hearing in open court on October 11, 2024. That demand is preserved on the court audio recording. ORS 135.050(1) required the hearing to be held within 30 days. Prior counsel filed no written motion to enforce the demand. The 30-day window lapsed. Prior counsel filed a written motion on December 24, 2024 — 74 days after the oral demand, and more than 44 days after the statutory deadline had already passed.

The State moved faster. On January 14, 2025 — before the December 24 motion could be heard — the State presented the case to a grand jury. The witness: Kinley Baker, a Target employee who was not present at Target on September 18, 2024. Baker testified: (1) that she contacted police directly; and (2) that officers were at Target that evening for an "unrelated incident." Both statements are directly contradicted by Deputy Rambin's sworn probable cause affidavit, which the prosecutor possessed at the time of Baker's testimony. The prosecutor made no correction. See Napue v. Illinois, 360 U.S. 264, 269 (1959) ("[T]he knowing use of false testimony to obtain a conviction violates due process."); United States v. Basurto, 497 F.2d 781, 785 (9th Cir. 1974) (due process requires dismissal of an indictment knowingly obtained through perjured testimony). Rambin's December 27, 2024 written acknowledgment of misidentification was not presented to the grand jury. See Brady v. Maryland, 373 U.S. 83 (1963).

Prior counsel, upon reviewing the grand jury transcript, confirmed to Defendant before a hearing: "The arresting officer lied during the grand jury. The State swapped out the complaining witness. The new witness claimed she contacted police. The officer changed his narrative to confirm Baker's version. Baker stated police were there on an unrelated incident." Prior counsel used the word "perjury." She filed no motion to dismiss on that ground. She used the word "perjury" in no filing. The prosecutorial misconduct ground was not properly raised and was not adjudicated. It is therefore not barred by the prior denial of the motion to dismiss. It is a fresh, unlitigated, and independently dispositive ground for dismissal.

D. The Warrantless Home Entry and the Void Bail Revocation

On May 10, 2025 — Day 11 of the Roberts clock — deputies of the Washington County Sheriff's Office arrived at Defendant's residence with weapons drawn, representing they were executing a "felony warrant" for Barry Washington. Defendant stepped outside and closed and locked her front door. Deputies entered nonetheless. A six-year-old child was inside.

The document later offered to justify the entry is a "Warrant Authorization and Suspension Order" signed by Washington County Community Corrections supervisory designee Kenneth Rolfe — not a judicial officer. The Fourth Amendment does not permit this. See Payton v. New York, 445 U.S. 573, 590 (1980) ("the Fourth Amendment has drawn a firm line at the entrance to the house. Absent exigent circumstances, that threshold may not reasonably be crossed without a warrant"). A warrant, within the meaning of the Fourth Amendment, means a judicial warrant — an instrument endorsed by a neutral magistrate upon a finding of probable cause. The power to cross the threshold of a private home requires the concurrence of two branches of government. An administrative order signed by a community corrections supervisor is the product of one branch only. It is constitutionally insufficient on its face.

The State's own brief in the related contempt proceeding (25CN02140) concedes that the operative standard is "reasonable grounds" under ORS 144.350(1). That concession is an admission that this document does not satisfy the constitutional warrant requirement. The deputies knew, or should have known, that they lacked authority to enter. They entered anyway, with weapons drawn, in the presence of a child.

The information used to support the subsequent bail revocation was gathered during and as a direct result of that unlawful entry. The identification of Defendant was made by Deputy Rambin — the arresting officer whose credibility is the central contested issue in this case, who had already acknowledged in writing that he arrested the wrong person — through review of written reports, not through direct observation or body-worn camera footage. The bail revocation is void on three independent grounds: (1) the unlawful home entry that produced the identifying observation; (2) the no-contact condition was never reimposed at re-arraignment in February 2025 and therefore did not exist as an operative release condition on May 10, 2025, see ORS 135.230 et seq.; ORS 136.070; and (3) the identification was made by a conflicted witness through inadmissible derivative evidence. The warrant issued from the void revocation is itself void.

Kenneth Rolfe — the sole signatory of the document offered to justify the entry — was laid off by Washington County Community Corrections on approximately May 27, 2025, within weeks of the entry. Defense counsel in the contempt proceeding stated under oath on July 3, 2025, that "no written or signed warrant was prepared or issued." The document materialized approximately 75 days after that sworn statement. Public records requests for documentation of Rolfe's layoff and for chronological creation records of the warrant document have been met with invoices of approximately $8,000 each — a barrier to access that, combined with the document's delayed materialization and the signatory's departure, warrants an adverse inference. The prosecutor who defended this entry, DDA Jade Sawyer, alternated between characterizing the document as an "arrest order" and an "arrest warrant" within the same brief. DDA Sawyer is no longer employed by the Washington County District Attorney's Office.

E. The April 29, 2025 Hearing: Prejudgment, a Judicial Promise, and the Right Denied

On April 29, 2025, prior counsel withdrew. Before she did, this Court made statements from the bench that are essential to this motion.

Before any evidence was presented and before any motion was argued, this Court stated: "That doesn't matter" — in direct response to Defendant's reference to the documented misidentification. This Court then stated: "I already pulled the cases on this. And I'm telling you the law is not in your favor." No cases were cited. No opportunity to respond was provided.

This Court's statement that the misidentification "doesn't matter" is not a legal ruling. It is a declaration — made before any hearing, before any evidence, before any argument — that a documented, written, officer-acknowledged racial misidentification is irrelevant to the constitutional question of probable cause. That declaration is wrong as a matter of law. See Beck v. Ohio, 379 U.S. 89, 91 (1964); State v. Hall, 339 Or. 7, 24–26 (2005). More fundamentally, it is a statement that this Court had already decided the central factual constitutional question in this case before it was presented. That is prejudgment. See In re Murchison, 349 U.S. 133, 136 (1955) ("A fair trial in a fair tribunal is a basic requirement of due process."); Caperton v. A.T. Massey Coal Co., 556 U.S. 868, 876 (2009) (due process requires recusal when there is a "probability of bias" sufficient to undermine confidence in the fairness of the proceeding).

This Court also told Defendant, on the record on April 29, 2025, that all hearings would be cancelled from the date of counsel's withdrawal forward, pending the appointment of new counsel. Defendant heard that promise. Defendant relied on it. She had every reason to. It is what the Constitution requires, and it is what this Court said would happen.

When Defendant attempted to exercise her acknowledged right to be heard, this Court stated: "You have the right to be heard" — and then, when Defendant sought to exercise it, responded: "We're getting you another lawyer." A right acknowledged and then immediately foreclosed upon exercise is no right at all. See Oregon CJC Rule 2.6(A). This Court further stated: "There's no record to preserve. I'm not making a decision today about anything." Defendant relied on that representation. The subsequent entry of an adverse ruling without hearing, without counsel, and without notice is a direct and compounded violation of the due process reliance interest this Court created.

F. The 296-Day Unrepresented Period: Adverse Rulings, a Void Hearing, and a Warrant

From April 29, 2025 forward, Defendant has been without appointed counsel. During that period:

In June–July 2025, this Court denied the motion to dismiss filed by prior counsel — without a hearing, without oral argument, without a State response, without an omnibus hearing, and without Defendant present. That ruling resolved the central constitutional question in this case while Defendant was unrepresented. It issued in direct contradiction of this Court's April 29, 2025 representation that no decisions would be made without counsel.

On July 1, 2025, Defendant filed a pro se Motion to Quash Warrant. That motion has sat unresolved for more than seven months.

On July 28, 2025 — Day 91 — the Roberts threshold was crossed. Mandatory dismissal became legally required as of that date.

On December 30, 2025, Defendant's contact information in the Court's electronic case management system was changed by "criminal justice staff" — without Defendant's knowledge, request, or authorization.

On February 9, 2026 — Day 286 of the unrepresented period — this Court held a hearing on Defendant's Motion to Quash Warrant in Defendant's absence. The State was represented. Defendant was not present and had no counsel. Following the hearing, the court clerk confirmed that no written order was entered — only an internal notation: "the warrant is to stay in place." ORS 3.070 requires court orders to be signed by the judge and filed with the clerk to have legal effect. An internal notation is not a judicial order. The February 9 proceeding is a nullity.

As of the date of this filing, February 19, 2026, Defendant has been without counsel for 296 consecutive days. The following motions remain pending and unresolved: the Demurrer to the Indictment (nine months); the Motion to Suppress; the Motion to Quash Warrant (seven months); the Motion to Set Aside the February 9 Proceeding; and the Brady demand for the grand jury transcript.

III. LEGAL ARGUMENT

A. Roberts Mandates Dismissal. The Trial Court's Legal Duty Attached on Day 91.

The Oregon Supreme Court held in State v. Roberts, 374 Or. 821 (2026), that "when an eligible criminal defendant lacks appointed counsel after arraignment for a period of more than 90 consecutive days in a felony case, dismissal of the criminal charges without prejudice is ordinarily required." The Court further held that "the trial court had a legal duty to grant relator's motion to dismiss." Id. That duty attached in this case on July 28, 2025. It has not been discharged. Every day since July 28, 2025, this Court has been in violation of a constitutional obligation it owed to Defendant.

Roberts further provides that the Court "does not foreclose a trial court from determining that there are case-specific reasons to dismiss the criminal charges against an eligible defendant who has been denied appointed counsel post-arraignment at an earlier point." Id. The record here presents overwhelming case-specific reasons for dismissal at an earlier point — reasons that existed before Day 91 and that have compounded every day since.

Roberts also acknowledges that "in truly extraordinary circumstances, a court could decline to dismiss a case after the 60- or 90-day period for exceptionally good cause." Id. The State bears the burden of establishing exceptionally good cause. It cannot meet that burden. The State's inability to manage its own public defense obligations does not constitute exceptionally good cause. The State's affirmative misconduct — evidence manufacturing, perjured grand jury

testimony, a warrantless home entry, an unauthorized contact substitution — makes the suggestion of good cause not merely unpersuasive but offensive to the integrity of these proceedings.

B. The Failure-to-Appear Exception Does Not Apply. The State Created the Conditions for the FTA and Cannot Invoke the Exception It Engineered.

Roberts provides a single exception to mandatory dismissal: "Dismissal is not required if, during the 60- or 90-day period, the defendant failed to appear for court as required." State v. Roberts, 374 Or. 821. Defendant acknowledges that a show cause hearing occurred at approximately Day 55 of the Roberts clock, and that she did not appear. The exception is nonetheless inapplicable. Three independent grounds, each separately sufficient, establish this conclusion.

1. This Court Promised Defendant That No Hearings Would Occur.

On April 29, 2025 — the day the Roberts clock began — this Court told Defendant, on the record, that all hearings would be cancelled from the date of counsel's withdrawal forward, pending appointment of new counsel. Defendant heard that promise. Defendant relied on it. She had no reason to believe any hearing would be scheduled. She had no counsel to monitor the docket. She had no way to know that a show cause hearing had been set. She had been told by the Court itself that no proceedings would go forward.

A defendant who relies on a court's own representation that no hearings will occur, and who then does not appear at a hearing she was told would not be scheduled, has not "failed to appear for court as required" within the meaning of Roberts. She has done exactly what the Court told her to do. The Roberts exception was designed to address defendants who evade the process — not defendants who comply with the Court's own instructions. To apply the exception here would be to punish Defendant for trusting this Court's word. The Constitution does not permit that result.

2. The Notice Was Constitutionally Defective, and the State Knew It.

The Supreme Court held in Mullane v. Central Hanover Bank & Trust Co., 339 U.S. 306, 314 (1950), that due process requires notice "reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of the action." The Court further held that "the means employed must be such as one desirous of actually informing the absentee might reasonably adopt to accomplish it." Id. Mailing notice to an address from which prior mail has been returned undelivered is not notice reasonably calculated to reach the recipient. It is notice the sender knows will fail.

The formal mailed notice for the show cause hearing was directed to a physical address from which prior mail had been returned undelivered. The State knew this. The Court's own records reflected returned mail. Mailing to a known-defective address is not constitutionally adequate notice — it is the functional equivalent of no notice at all. See Peralta v. Heights Medical Center,

Inc., 485 U.S. 80, 84–85 (1988) (judgment entered without adequate notice violates due process regardless of the merits of the underlying claim).

The supplemental text-message notifications directed to Defendant's phone — sent January 29, February 2, and February 8, 2026 — do not cure this defect. The Oregon Judicial Department's own published materials state that text notifications "do not replace official court notices" and are provided "for your convenience only." The State cannot rely on a supplemental notification system that its own judicial department characterizes as non-official to satisfy a constitutional notice requirement.

3. The State Cannot Benefit from an Exception Caused by Its Own Agents.

On December 30, 2025, Defendant's contact information in the Court's electronic case management system was changed by "criminal justice staff" — without Defendant's knowledge, request, or authorization. Any notice directed to the unauthorized contact information cannot be attributed to Defendant. Notice directed to contact information a government actor substituted without consent does not constitute notice "reasonably calculated" to reach the party. See Mullane, 339 U.S. at 314.

The principle is foundational: a party cannot invoke a legal exception that its own wrongful conduct created. See United States v. Olano, 507 U.S. 725, 733 (1993). The State's agents altered Defendant's contact information without authorization. The State's agents mailed notice to an address from which prior mail had been returned. The State's agents scheduled a hearing that this Court had promised would not occur. The State cannot now invoke the failure-to-appear exception as a shield against the consequences of its own agents' conduct.

C. Grounds for Dismissal That Are Independent of Roberts and That Exist Regardless of Remedy.

The following grounds for dismissal exist independently of Roberts. They are not procedural. They go to the constitutional integrity of this prosecution from its inception. They are presented here not merely to supplement the Roberts argument, but because they independently require dismissal and because they bear directly on the question of whether dismissal should be with or without prejudice.

1. The Indictment Was Obtained Through Perjured Testimony the Prosecutor Knew Was False.

The Due Process Clause of the Fourteenth Amendment prohibits the State from obtaining an indictment through testimony it knows to be false. See Napue v. Illinois, 360 U.S. 264, 269 (1959). The Ninth Circuit has held that an indictment obtained through perjured testimony that the prosecutor knew was false must be dismissed. See United States v. Basurto, 497 F.2d 781, 785–87 (9th Cir. 1974).

The record here is unambiguous. Kinley Baker testified before the grand jury that she contacted police directly and that officers were at Target on September 18, 2024, for an "unrelated incident." Deputy Rambin's sworn probable cause affidavit — which the prosecutor possessed — directly contradicts both statements. The affidavit establishes that LP Agent Sarah Fillis contacted Officer Orozco, who relayed the tip to Rambin; that officers were dispatched in response to that tip; and that the tip concerned Defendant specifically. The prosecutor knew Baker's testimony was contradicted by the arresting officer's own sworn statement. The prosecutor made no correction. The prosecutor did not present Rambin's affidavit to the grand jury. The prosecutor did not present Rambin's December 27, 2024 written acknowledgment that he arrested the wrong person.

This is not a case of ambiguity or competing inferences. The State presented a witness who was not present at the scene of the alleged crime, whose testimony contradicted the arresting officer's sworn affidavit on every material point, and the prosecutor said nothing. That is a Napue violation. That is a Basurto violation. That is a Brady violation. Each independently requires dismissal.

Prior counsel identified these violations verbally. She did not litigate them. That failure is an RPC 1.1 and RPC 1.3 violation of the first order — the failure to pursue a ground that counsel herself described as perjury, that she confirmed to her client, and that she then buried in a motion to dismiss without argument. The prosecutorial misconduct ground was never properly raised, never argued, and never adjudicated. It is not barred by the prior denial of the motion to dismiss. It is before this Court now, fully preserved, for the first time.

Oregon RPC 3.8(d) requires a prosecutor to "make timely disclosure to the defense of all evidence or information known to the prosecutor that tends to negate the guilt of the accused." Oregon RPC 3.8(a) prohibits a prosecutor from "prosecut[ing] a charge that the prosecutor knows is not supported by probable cause." The prosecutor in this case possessed: Deputy Rambin's written acknowledgment that he arrested the wrong person; LP Agent Fillis's activity report showing no criminal conduct during Defendant's 35-minute presence; and Kinley Baker's grand jury testimony, which the prosecutor knew was contradicted by the arresting officer's own affidavit. A prosecutor who possesses all of that and continues to prosecute has crossed the line that RPC 3.8 draws. The ethical duty of a prosecutor is not to win — it is to do justice. See Berger v. United States, 295 U.S. 78, 88 (1935) ("[The prosecutor] is the representative not of an ordinary party to a controversy, but of a sovereignty whose obligation to govern impartially is as compelling as its obligation to govern at all; and whose interest, therefore, in a criminal prosecution is not that it shall win a case, but that justice shall be done."). That obligation was abandoned in this case from the moment the prosecutor stood before the grand jury and allowed Kinley Baker's testimony to go uncorrected.

2. All Evidence Derived from the September 18, 2024 Arrest Is Fruit of the Poisonous Tree.

The arrest of Defendant on September 18, 2024 was unlawful. It was made without probable cause, based on a racial substitution — one Black woman for another — without individualized

investigation, without review of available surveillance footage, and without any act of criminal conduct observed by any officer or LP agent during Defendant's 35-minute presence in the store. See Beck v. Ohio, 379 U.S. 89, 91 (1964).

The booking photograph taken at the jail following that unlawful arrest is the fruit of that arrest. See Wong Sun v. United States, 371 U.S. 471, 484–85 (1963). Every identification of Defendant made after September 18, 2024 — by Travis Gower, by Deputy Rambin in his post-arrest investigation, and by any witness whose identification traces to the booking photograph — is derivative tainted evidence. See State v. Hall, 339 Or. 7, 24–26 (2005) (Oregon's independent source and inevitable discovery doctrines require the State to demonstrate that the challenged evidence was obtained through means wholly independent of the constitutional violation). The State cannot make that demonstration. Target did not independently identify Defendant by name before the arrest. It was Gower's use of the booking photograph — itself the fruit of the unlawful arrest — that connected Defendant to Target's records of prior incidents. The but-for causal chain is unbroken. Every link is poisoned.

The felony threshold for Theft I under ORS 164.055(1)(a) is $1,000. The value documented on the night of arrest was $285.55 — well below the felony threshold. The value is reached only by aggregating conduct from prior incidents attributed to Defendant through identifications made via the booking photograph. Strip away the tainted identifications, and there is no felony. There is no case.

3. The Warrantless Home Entry Independently Requires Suppression of All Evidence Derived Therefrom.

The May 10, 2025 entry into Defendant's home was conducted without a judicial warrant. See Payton v. New York, 445 U.S. 573, 590 (1980). The administrative order offered to justify the entry does not satisfy the Fourth Amendment's warrant requirement. The State's own brief concedes the operative standard is "reasonable grounds" — not probable cause endorsed by a neutral magistrate. That concession is dispositive. All observations made during the unlawful entry, all evidence gathered as a result of that entry, and the bail revocation predicated on that entry are suppressed as fruit of the poisonous tree. See Wong Sun, 371 U.S. at 484–85; State v. Hall, 339 Or. 7, 24–26 (2005).

D. Dismissal With Prejudice Is Required. The Record Presents Case-Specific Prejudice That No Appointment of Counsel Can Undo, and Outrageous Government Conduct That Independently Warrants the Sanction.

Roberts contemplates dismissal with prejudice when the record presents case-specific prejudice to the ultimate outcome of the proceeding — prejudice that accumulated during the unrepresented period and that no subsequent appointment of counsel can remedy. State v. Roberts, 374 Or. 821. Dismissal with prejudice is also independently warranted under the outrageous government conduct doctrine. See State v. Lively, 321 Or. 1, 14 (1995); Rochin v. California, 342 U.S. 165, 172 (1952).

The following categories of case-specific, outcome-determinative prejudice are documented in the record:

CATEGORY 1 — DENIAL OF MOTIONS WHILE UNREPRESENTED (CASE-DETERMINATIVE)
This Court denied the motion to dismiss — the central constitutional motion in this case — without a hearing, without oral argument, without a State response, and without Defendant present, during the unrepresented period. That ruling resolved the probable cause and misidentification questions adversely to Defendant while she had no counsel to respond, no opportunity to be heard, and no ability to preserve error. No appointment of counsel can undo a ruling already entered. The prejudice is permanent.

CATEGORY 2 — BODY-WORN CAMERA FOOTAGE AND PHYSICAL EVIDENCE (CASE-DETERMINATIVE)
The 22 minutes and 26 seconds of unaccounted-for store footage, combined with Officer Orozco's body-worn camera footage showing LP Agent Fillis returning items as "not Target's property," is Defendant's most powerful physical evidence. During the 296-day unrepresented period, Defendant had no counsel to file a preservation demand, no counsel to issue a subpoena, and no counsel to move for sanctions if footage was destroyed. If that footage no longer exists, the prejudice is irreversible. No appointment of counsel can recover destroyed evidence.

CATEGORY 3 — THE MOTUS EMPLOYMENT OPPORTUNITY (CASE-DETERMINATIVE AS TO PREJUDICE)
During the unrepresented period, a specific employment opportunity with MOTUS was jeopardized by the outstanding warrant. The loss of that opportunity is a concrete, documented harm that occurred because this Court failed to discharge its Roberts duty. It is both a damages element and a prejudice element that no future appointment of counsel can restore.

CATEGORY 4 — HOUSING INSTABILITY AND FAMILY HARM (NON-CASE-DETERMINATIVE BUT INDEPENDENTLY COGNIZABLE)
The outstanding warrant has caused housing instability, financial harm, and documented disruption to Defendant's family — including the presence of a six-year-old child during the warrantless home entry with weapons drawn. These harms are not case-determinative in the technical sense, but they are cognizable as prejudice under Roberts and as harm under the outrageous government conduct doctrine. They did not need to happen. They happened because the State chose to maintain a case it knew was constitutionally defective.

CATEGORY 5 — GRAND JURY TRANSCRIPT AND BRADY MATERIAL (CASE-DETERMINATIVE)
During the unrepresented period, Defendant had no counsel to demand the grand jury transcript under ORS 132.210, no counsel to file a Brady demand for Rambin's misidentification report, and no counsel to litigate the Napue and Basurto violations. The longer those demands go

unmade, the greater the risk that material is lost, destroyed, or rendered unavailable. The prejudice compounds daily.

CATEGORY 6 — WITNESS AVAILABILITY AND MEMORY (CASE-DETERMINATIVE)
Kenneth Rolfe — the signatory of the document offered to justify the home entry — has been laid off and is unavailable. DDA Jade Sawyer — the prosecutor who defended the entry and alternated between "arrest order" and "arrest warrant" in the same brief — is no longer employed by the Washington County District Attorney's Office. Every day of delay is a day in which witnesses become less available, memories fade, and the record becomes harder to reconstruct. No appointment of counsel can recover a witness who is gone.

CATEGORY 7 — JUDICIAL PREJUDGMENT (NON-CASE-DETERMINATIVE BUT INDEPENDENTLY COGNIZABLE)
This Court's April 29, 2025 statements — "That doesn't matter" and "I already pulled the cases on this" — are on the record. They establish, before any hearing, that this Court had prejudged the central constitutional question in this case. Defendant has been litigating before a judge who has already decided against her, without counsel, for 296 days. The prejudice to the fairness of the proceeding is not case-determinative in the technical sense, but it is a constitutional harm that independently supports dismissal with prejudice and a recusal motion under ORS 14.210 and Caperton v. A.T. Massey Coal Co., 556 U.S. 868 (2009).

CATEGORY 8 — THE VOID BAIL REVOCATION AND OUTSTANDING WARRANT (CASE-DETERMINATIVE)
The bail revocation was void. The warrant issued from that void revocation is void. Both were entered and maintained during the unrepresented period. Both have caused concrete, ongoing harm — including the jeopardized employment opportunity, the housing instability, and the inability to travel or work freely. No appointment of counsel can undo the harm already caused by 296 days of an unlawful warrant.

CATEGORY 9 — THE FEBRUARY 9, 2026 PROCEEDING (CASE-DETERMINATIVE)
This Court held a hearing on Defendant's Motion to Quash Warrant in Defendant's absence, without notice, without counsel, 196 days after the Roberts threshold was crossed. The State was represented. Defendant was not. Whatever occurred at that hearing — including the internal notation that "the warrant is to stay in place" — occurred in a proceeding that is a constitutional nullity. But the harm of having had that proceeding, and of having had the State's position heard while Defendant's was not, cannot be undone by appointment of counsel now.

CATEGORY 10 — OUTRAGEOUS GOVERNMENT CONDUCT (INDEPENDENT GROUND FOR DISMISSAL WITH PREJUDICE)
The doctrine of outrageous government conduct provides an independent basis for dismissal with prejudice when the State's conduct "is so outrageous that due process principles would absolutely bar the government from invoking judicial processes to obtain a conviction." State v. Lively, 321 Or. 1, 14 (1995); see also Rochin v. California, 342 U.S. 165, 172 (1952). The conduct documented here — a racial misidentification; evidence manufacturing after a written

acknowledgment of innocence; perjured grand jury testimony presented without correction; a warrantless home entry with weapons drawn in the presence of a child; a warrant document that materialized 75 days after defense counsel swore under oath it did not exist; a signatory who was laid off within weeks of the entry; an unauthorized substitution of Defendant's contact information; a hearing held in Defendant's absence after this Court promised no hearings would occur; and 296 days without counsel while adverse rulings were entered — is not a collection of isolated errors. It is a pattern. It is a pattern that, taken together, shocks the conscience and places this case squarely within the outrageous government conduct doctrine.

IV. RELIEF REQUESTED

Defendant respectfully requests the following relief:

PRIMARY RELIEF: Dismissal of the indictment with prejudice, on the grounds that: (1) the 296-day denial of appointed counsel, combined with the ten categories of case-specific and independent prejudice documented above, requires dismissal with prejudice under State v. Roberts, 374 Or. 821 (2026); and (2) the State's conduct, taken in its totality, constitutes outrageous government conduct requiring dismissal with prejudice under State v. Lively, 321 Or. 1, 14 (1995), and Rochin v. California, 342 U.S. 165, 172 (1952).

ALTERNATIVE RELIEF: Dismissal of the indictment without prejudice — the mandatory minimum remedy under State v. Roberts, 374 Or. 821 (2026), for a 296-day violation in a felony case.

ADDITIONAL RELIEF:
1. Immediate vacation of all adverse rulings entered during the unrepresented period, including the June–July 2025 denial of the motion to dismiss and the February 9, 2026 internal notation regarding the Motion to Quash Warrant;
2. Immediate quashing of the outstanding arrest warrant as void, having issued from a void bail revocation predicated on an unlawful home entry and a non-existent release condition;
3. Immediate production of the grand jury transcript pursuant to ORS 132.210 and Brady v. Maryland, 373 U.S. 83 (1963);
4. Immediate production and preservation of all body-worn camera footage from September 18, 2024 and May 10, 2025, including Officer Orozco's footage of the post-arrest bag search, directed to the Washington County Sheriff's Office, the Washington County District Attorney's Office, and Target Corporation;
5. A status conference within ten (10) days of the date of this order at which all pending motions shall be scheduled for hearing; and
6. A formal recusal inquiry under ORS 14.210, Caperton v. A.T. Massey Coal Co., 556 U.S. 868 (2009), and Oregon CJC Rules 2.2 and 2.6, based on this Court's April 29, 2025 on-the-record statements.

V. CONCLUSION

The Oregon Supreme Court has spoken. The duty to dismiss attached on July 28, 2025. It has not been discharged. Every day since that date, Defendant has been subjected to an unconstitutional prosecution — without counsel, without hearings, without rulings on her pending motions, and without the basic procedural protections the Constitution guarantees.

The State has not prosecuted this case. It has weaponized it. It has used it to revoke bail on a condition that did not exist, to enter a home without a judicial warrant, to maintain a warrant that issued from a void revocation, and to deny Defendant employment, housing stability, and the ability to live her life — all while knowing, from its own documents, that the arrest that started this case was wrong.

This Court has the power to end it. It has the duty to end it. The Oregon Supreme Court has said so. The Constitution has said so. The record has said so, in the State's own words, in the State's own documents, and in the testimony of the State's own witnesses.

Defendant respectfully requests that this Court exercise that power and discharge that duty — now.

Respectfully submitted,

Ashle' Penn
Defendant, Pro Se
Case No. 24CR49043
Date: _____, 2026

NOTICE OF MOTION

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

STATE OF OREGON, Plaintiff,
vs.
ASHLE' PENN, Defendant, Pro Se.
Case No. 24CR49043

TO: Washington County District Attorney's Office, Plaintiff's Counsel of Record, and all interested parties:

PLEASE TAKE NOTICE that Defendant Ashle' Penn, appearing pro se, will bring the foregoing Emergency Motion to Dismiss Indictment With Prejudice before the Circuit Court of the State of Oregon for the County of Washington at the earliest available date and time, or at such date and time as the Court shall direct.

The motion is based upon: State v. Roberts, 374 Or. 821 (2026); Article I, §§ 9, 10, and 11 of the Oregon Constitution; the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution; Napue v. Illinois, 360 U.S. 264 (1959); United States v. Basurto, 497 F.2d 781 (9th Cir. 1974); Brady v. Maryland, 373 U.S. 83 (1963); State v. Lively, 321 Or. 1 (1995); ORS 135.030; Oregon RPC 3.8; and the accompanying memorandum of law, Exhibit A (Chronological Record of Proceedings), and all records and proceedings in this matter.

Defendant requests oral argument. Estimated time: 90 minutes.

Respectfully submitted,

Ashle' Penn
Defendant, Pro Se
Date: _____, 2026

CERTIFICATE OF SERVICE

I, Ashle' Penn, hereby certify that on _____, 2026, I served a true and correct copy of the foregoing Emergency Motion to Dismiss Indictment With Prejudice, Notice of Motion, and Proposed Order upon the Washington County District Attorney's Office, counsel of record for Plaintiff, by electronic service through the Oregon eCourt eFiling and eService system (OJD eFile and Serve) in accordance with UTCR 21.100 et seq. and Oregon Rules of Civil Procedure 9 B.

I declare under penalty of perjury under the laws of the State of Oregon that the foregoing is true and correct.

Ashle' Penn
Defendant, Pro Se
Date: _____, 2026

PROPOSED ORDER

IN THE CIRCUIT COURT OF THE STATE OF OREGON
FOR THE COUNTY OF WASHINGTON

STATE OF OREGON, Plaintiff,
vs.
ASHLE' PENN, Defendant.
Case No. 24CR49043

ORDER GRANTING DEFENDANT'S EMERGENCY MOTION TO DISMISS INDICTMENT WITH PREJUDICE

THIS MATTER having come before the Court on Defendant's Emergency Motion to Dismiss Indictment With Prejudice; the Court having considered the motion, the accompanying memorandum of law, Exhibit A, and the full record of proceedings in this matter; and good cause appearing therefor:

THE COURT FINDS AS FOLLOWS:

1. Defendant Ashle' Penn has been without appointed counsel in this felony case for 296 consecutive days following the withdrawal of prior counsel on April 29, 2025, which is 206 days beyond the 90-day constitutional threshold established by the Oregon Supreme Court in State v. Roberts, 374 Or. 821 (2026).

2. The trial court's legal duty to dismiss this case attached on July 28, 2025, pursuant to State v. Roberts, 374 Or. 821 (2026).

3. The failure-to-appear exception set forth in State v. Roberts does not apply because: (a) this Court represented to Defendant on the record on April 29, 2025 that all hearings would be cancelled pending appointment of counsel, and Defendant relied on that representation; (b) formal mailed notice was directed to a physical address from which prior mail had been returned undelivered; and (c) Defendant's contact information was altered without her knowledge or authorization by criminal justice staff on December 30, 2025.

4. The record presents ten independent categories of case-specific and non-case-specific prejudice, including the denial of constitutional motions while unrepresented, the risk of loss of body-worn camera footage, the loss of employment opportunity, housing instability, judicial prejudgment, a void bail revocation, a void outstanding warrant, and a hearing held in Defendant's absence without notice or counsel.

5. The State's conduct in this matter, taken in its totality, constitutes outrageous government conduct within the meaning of State v. Lively, 321 Or. 1, 14 (1995), and Rochin v. California, 342 U.S. 165, 172 (1952).

IT IS HEREBY ORDERED:

1. Defendant's Emergency Motion to Dismiss Indictment With Prejudice is GRANTED.

2. The indictment in Case No. 24CR49043 is DISMISSED WITH PREJUDICE.

[ALTERNATIVE: The indictment in Case No. 24CR49043 is DISMISSED WITHOUT PREJUDICE pursuant to State v. Roberts, 374 Or. 821 (2026).]

3. All adverse rulings entered during the unrepresented period, including the June–July 2025 denial of the motion to dismiss and the February 9, 2026 internal notation regarding the Motion to Quash Warrant, are hereby VACATED.

4. The outstanding arrest warrant in Case No. 24CR49043 is hereby QUASHED and VOID.

5. The Washington County District Attorney's Office, the Washington County Sheriff's Office, and Target Corporation shall immediately preserve all body-worn camera footage from September 18, 2024 and May 10, 2025.

6. The Washington County District Attorney's Office shall produce the grand jury transcript within _____ days of the date of this Order.

7. A status conference shall be held within ten (10) days of the date of this Order.

IT IS SO ORDERED.

Dated: _____, 2026.

_____
Judge, Circuit Court of Oregon
County of Washington